

**IN THE MATTER OF CITY OF BENICIA vs. STEPHEN CLIFFORD BLACK and
CHERYL ANN BLACK as Trustees of THE STEVEN BLACK AND CHERYL ANN
BLACK REVOCABLE LIVING TRUST; ET AL.**

Case No. CU26-05823

Petition for Order to Abate Substandard Building and Appoint Receiver

TENTATIVE RULING

If the title owner of real property fails to effect cleanup/repairs within a reasonable period of time, Health & Safety Code §17980.7(c) authorizes the public entity to seek court appointment of a receiver, after service of the petition papers on that owner in the manner required for service of summons.

If the owner fails to comply within a reasonable time with the terms of the order or notice issued pursuant to Section 17980.6, the following provisions shall apply:

. . .

(c) The enforcement agency, tenant, or tenant association or organization may seek and the court may order, the appointment of a receiver for the substandard building pursuant to this subdivision. In its petition to the court, the enforcement agency, tenant, or tenant association or organization shall include proof that notice of the petition was posted in a prominent place on the substandard building and mailed first-class mail to all persons with a recorded interest in the real property upon which the substandard building exists not less than three days prior to filing the petition. **The petition shall be served on the owner pursuant to Article 3 (commencing with Section 415.10) of Chapter 4 of Title 5 of Part 2 of the Code of Civil Procedure** (emphasis added)

While the posting and pre-filing notice requirement has been established by BENICIA the court cannot find any proof of service of the petition/motion papers on all interested parties in a manner authorized for service of summons. The only post-filing proof of service on file indicates service only of the petition itself, not notice of the hearing, motion, or supporting papers. Furthermore, the only manner of service indicated for the petition itself was posting in a conspicuous place on the property.

Post-filing post and mail service is authorized only for unlawful detainer actions. (Code Civ. Proc., § 415.45.)

Generally, except as to out-of-state respondents, mail service is insufficient, and personal or substituted service is preferred. (Code Civ. Proc., §§ 415.10-415.40.)

If despite reasonable diligence service cannot be effected in a manner authorized for service of summons and complaint a plaintiff making such a showing of diligence can seek court authorization to serve by publication. (Code Civ. Proc., § 415.50.)

The court additionally observes that the petition states that Respondents JOSEPH H. LALLAMANT II JR., YEN THI LALLAMANT, JOSEPH H. LALLAMONT SR., and AVIS LALLAMANT possess joint tenancy interests the property at issue. BENICIA named a Doe respondent as JD DEVELOPERS, LLC on July 14, 2026. There is no indication of service of any papers on these apparently interested parties.

The court therefore continues this matter to DATE to give BENICIA time to serve all interested parties with notice of the petition, motion, and hearing in a statutorily authorized manner.

It also concerns the court that the proposed receiver is based in Southern California and therefore can be expected to claim significantly higher travel expenses than one based in Northern California. The court requests an explanation as to why BENICIA has proposed a Southern California receiver.

Department 7 is inviting you to a scheduled ZoomGov meeting.
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